OREA Ontario Real Estate Association

**Form 105**
for use in the Province of Ontario

# Schedule B
## Agreement of Purchase and Sale

This Schedule is attached to and forms part of the Agreement of Purchase and Sale between:

**BUYER:** ....., and

**SELLER:** .....

for the property known as .....

..... dated the ..... day of ....., 20.....

**The Parties to this Agreement hereby acknowledge and agree that the Deposit Holder, International Realty Firm, Inc. ("IRF") shall place the Deposit in it's real estate trust account, which earns interest at a rate of prime minus 3.80% per annum. Further, the Parties acknowledge and agree that the Deposit Holder shall pay any interest it earns and receives on the Deposit, less a $195.00 Plus HST processing fee, to the Buyer upon completion of the transaction and upon submission by the Buyer to the Deposit Holder of their Social Insurance Number ("SIN")(or their Canada Revenue Agency Business Number, "BN", if the Buyer is a Corporation) and mailing address in accordance with Canada Revenue Agency's requirements for the preparation of a T5 slip.**

**Should the SIN or BN and mailing address not be provided to the Deposit Holder within thirty (30) days following completion of the transaction, said interest shall be forfeited to the Deposit Holder.**

**The parties acknowledge that information provided by any Real Estate Salesperson/Broker or Real Estate Brokerage shall not be construed as expert legal advice, tax advice, advice on zoning changes, engineering advice or environmental advice and the parties acknowledge that the Salesperson and the Brokerage have been advised that the parties seek independent professional advice on any of the above matters and concerns.**

**Unless otherwise stated in this Agreement, the chattels (if any), which are included in the Purchase Price are being sold in "as is" condition, without warranty.**

**The Seller And The Buyer agree and/or acknowledge that all measurements and information provided by International Realty Firm, Inc., Brokerage on the MLS listing, feature sheets and any other marketing materials for the subject property, have only been obtained by sources deemed reliable. However, they have been provided for information purposes only and as such International Realty Firm, Inc., Brokerage does not warrant their accuracy.**

**The Buyer is advised to verify any measurement or information upon which he or she is relying.**

**In accordance with the Federal Privacy Act (PIPEDA), upon the acceptance of this attached agreement, all parties to this transaction consent to the publication and distribution of the sale price of this property, upon a firm Agreement of Purchase and Sale and after the closing date. The Listing Brokerage and the Co-operating Brokerage and their Representatives are authorized to advertise and disclose the sale price to other Realtors and to the public, while conducting and promoting their daily real estate activities.**

**Clients represented by International Realty Firm, Inc., Brokerage agree and acknowledge that referral fees may be received by the brokerage and/or Real Estate Salespersons/Brokers in some cases.**

**The seller represents and warrants that during the time the Seller has owned the property, and to the best of the Seller's knowledge and belief, the use of the property, buildings and structures thereon have not been used for the growth or manufacture of any illegal substances. This warranty shall survive and not merge on the completion of this transaction.**

This form must be initialled by all parties to the Agreement of Purchase and Sale.

**INITIALS OF BUYER(S):** ( )  **INITIALS OF SELLER(S):** ( )

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